

SENATE No. 775

The Commonwealth of Massachusetts

PRESENTED BY:

Edward J. Kennedy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to increase enrollment in affordable health plan networks.

PETITION OF:

NAME:

Edward J. Kennedy

DISTRICT/ADDRESS:

First Middlesex

SENATE No. 775

By Mr. Kennedy, a petition (accompanied by bill, Senate, No. 775) of Edward J. Kennedy for legislation to increase enrollment in affordable health plan networks. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to increase enrollment in affordable health plan networks.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Subsection (a) of section 11 of chapter 176J of the General Laws is hereby amended by
2 inserting at the end thereof the following:-

3 The commissioner may also exempt carriers from complying with this section based on
4 (i) whether the majority of a carrier's chapter 176J membership is enrolled in a single rate
5 region; or (ii) whether the majority of the carrier's chapter 176J membership is enrolled in
6 subsidized coverage offered under chapter 176Q through which such members receive state or
7 federal subsidies; or (iii) whether the carrier receives 80 per cent or more of its income from
8 government programs, including subsidized coverage offered under chapter 176Q through which
9 such members receive state or federal subsidies.

10 SECTION 2. Section 9A of chapter 176O of the General Laws is hereby amended by
11 striking out subsection (a) and inserting in place thereof the following subsection:-

12 "(a)(i) limits the ability of the carrier to introduce or modify a select network plan or
13 tiered network plan by granting the health care provider a guaranteed right of participation; (ii)
14 requires the carrier to place all members of a provider group, whether local practice groups or
15 facilities, in the same tier of a tiered network plan; or (iii) requires the carrier to include all
16 members of a provider group, whether local practice groups or facilities, in a select network plan
17 on an all-or-nothing basis; or".